Judge Says California Must Keep Counting Ballots as They Are

From: PBS NewsHour Mined: 2026-10-30 5 min read

A federal judge in Los Angeles has rejected a request that would have changed how California handles some ballots in the middle of voting. On Wednesday, U.S. District Judge David O. Carter turned down a Trump administration request to stop the state from processing the ballots of up to 20,000 people it alleged were likely **noncitizens**.

The ruling came as more than 3.7 million people had already voted in California. The state mails ballots to all 23 million registered voters, and court filings show more than 500,000 ballots had already been processed, with envelopes verified and ballots removed. Once that happens, county officials testified, a ballot can no longer be matched to its voter.

Carter wrote that separating the ballots now would wreak havoc and disrupt an election already underway. He said it would risk **disenfranchising** an untold number of voters, chill election workers and voters alike, and discount the votes of United States citizens. He argued it would work like **purging** voters, violating the National Voting Rights Act rule against changing voter rolls within 90 days of an election.

The administration sued California election officials in mid-October, saying they missed a 48-hour deadline to review a list of 20,000 people it alleged were likely **noncitizens**. It asked the judge to require the state to wait to count those ballots until each voter's immigration status could be verified.

Justice Department lawyers said they would immediately appeal. First Assistant U.S. Attorney Bill Essayli argued that **segregating** a ballot does not stop it from being counted later, saying it was designed to preserve the **status quo** and prevent the vote from being **diluted** by illegal ballots. Carter rejected the claim that California was blocking federal enforcement, noting prosecutors had already arrested 28 **noncitizens** who had allegedly voted or registered to vote illegally.

Word Treasure

noncitizens -- People who are not citizens of the country where they live.

disenfranchising -- Taking away or blocking a person's right to vote.

segregating -- Separating one group of things from the rest, here separating some ballots from others.

purging -- Removing names from a list, here removing voters from the voter rolls.

diluted -- Made weaker in effect, here used to mean votes counting for less because of illegal votes.

status quo -- The way things are now, kept unchanged.

Background you need

In the United States, states run elections, including mailing ballots to registered voters and checking envelopes before ballots are counted.

Once a ballot is removed from its envelope, it is kept secret and cannot be traced back to the person who cast it.

Federal law limits changes to voter lists close to an election, to avoid removing eligible voters by mistake.

A court can be asked to change how ballots are handled, and a ruling can be appealed to a higher court.

Break it down

LEAD: A federal judge in Los Angeles rejected a request that would have changed how California handles some ballots in the middle of voting.

KEY EVENT: Judge David O. Carter turned down a Trump administration request to stop the state from processing the ballots of up to 20,000 people it alleged were likely noncitizens.

+- WHO: Judge David O. Carter, the Trump administration, and California election officials.

+- WHEN: On Wednesday, as more than 3.7 million people had already voted in California.

+- WHERE: California, in a federal court in Los Angeles.

EVIDENCE: More than 500,000 ballots had already been processed, and once envelopes are verified and ballots removed, a ballot can no longer be matched to its voter.

OPEN QUESTION: The Justice Department said it would immediately appeal, so the dispute is not necessarily over.

Why it matters

Rules about counting ballots in the middle of voting affect whether eligible votes are counted, so court decisions during an election can shape trust in the result.

Test what you remember

1. Which judge turned down the Trump administration's request?

- (A) A county election official
- (B) A California election official
- (C) Judge David O. Carter
- (D) Bill Essayli

2. Up to how many people's ballots did the administration want California to stop processing?

- (A) 3.7 million
- (B) 500,000
- (C) 20,000
- (D) 28

3. How many people had already voted in California when the ruling came?

- (A) More than 500,000
- (B) 20,000
- (C) 23 million
- (D) More than 3.7 million

4. Why, according to county officials, can a processed ballot no longer be matched to its voter?

- (A) Because the voter has moved away
- (B) Because the envelope has been verified and the ballot removed
- (C) Because the ballot has already been counted
- (D) Because the voter is not registered

5. What deadline did the administration say California had missed?

- (A) A 48-hour deadline to review a list
- (B) A mid-October filing deadline
- (C) A 90-day deadline
- (D) An Election Day deadline

6. What did Justice Department lawyers say they would do after the ruling?

- (A) Stop all ballot processing in California
- (B) Drop the case
- (C) Immediately appeal
- (D) Arrest more voters

Answer key (try the quiz first!): 1: C 2: C 3: D 4: B 5: A 6: C

Questions to think about

1. **Judge David O. Carter: Says separating the ballots now would disrupt an election already underway and risk disenfranchising voters.**

2. **The Trump administration: Asked the state to wait to count the ballots until each voter's immigration status could be verified.**

3. **Bill Essayli: Argues that segregating a ballot does not stop it from being counted later and is designed to preserve the status quo.**

MY THOUGHTS (at least 20 words):